

**BEFORE THE
SANTA CLARA COUNTY SUPERINTENDENT OF SCHOOLS
COUNTY OF SANTA CLARA
STATE OF CALIFORNIA**

**In the Matter of the Reduction in Force Involving 71
Certificated Employees, Respondents.**

OAH No. 2025030967

PROPOSED DECISION

Administrative Law Judge Holly M. Baldwin, State of California, Office of Administrative Hearings, heard this matter on April 23 and 24, 2025, by videoconference.

Attorney Joshua A. Stevens represented the Santa Clara County Superintendent of Schools.

Attorney Eric J. Lindstrom represented 56 respondents listed in Attachment B to this decision, who are members of the Association of County Educators (ACE).

Respondent Conchita Yu appeared at hearing on April 24, 2025, representing herself.

Six respondents were self-represented and did not appear at hearing: Tracy Cadena, Jordan Goldstein, Althea Guzman, Courtney Henry, An Ho, and Ngoc Pham. The hearing proceeded in their absence pursuant to Government Code section 11520.

The record closed and the matter was submitted for decision on April 24, 2025.

FACTUAL FINDINGS

Procedural History

1. On March 7, 2025, the Interim Superintendent of the Santa Clara County Office of Education (SCCOE), Dr. Charles Hinman, adopted a resolution entitled "In the Matter of the Reduction or Discontinuance of Certain Certificated Particular Kinds of Services for the 2025-2026 School Year" (PKS Resolution), reducing or discontinuing particular kinds of services for the 2025-2026 school year and directing that proceedings be initiated not to employ the affected employees for the coming year. The PKS Resolution identified the services to be reduced or discontinued, a total of 96.17 FTE (full time equivalent) certificated positions, as listed in Attachment A to this decision. The PKS Resolution stated that the services of no permanent employee will be terminated while any probationary employee, or any other employee with less seniority, is retained to render a service that the permanent employee is certificated and competent to render.

The PKS Resolution did not designate any particular kinds of services to be retained ("skipping" criteria) under Education Code section 44955, subdivision (d).

2. Interim Superintendent Hinman also adopted, on March 5, 2025, a resolution entitled, "In the Matter of Determination of Seniority Among Certificated Employees with the Same Seniority Date" (Tie-Breaker Resolution), setting forth criteria to be used in determining the order of termination as between certificated employees who first rendered paid service to the SCCOE on the same date.

3. Prior to March 15, 2025, SCCOE timely issued initial layoff notices to 88 certificated employees pursuant to Education Code sections 44949 and 44955, and

served the notices by certified mail. Each of these employees was served with an initial layoff notice, a copy of the PKS Resolution, forms for acknowledgment of receipt and request for hearing, and copies of the applicable Education Code sections.

4. Interim Superintendent Hinman made and filed the Statement of Reduction in Force in his official capacity on March 26, 2025.

5. A total of 71 certificated employees¹ timely requested a hearing, were served with a Statement of Reduction in Force packet (RIF Packet), and became respondents in this proceeding by filing notices of participation. Each of these respondents was served by certified mail with a RIF Packet including a statement to respondent, a Statement of Reduction in Force (with attached PKS Resolution), a blank form for notice of participation in the hearing, and copies of relevant Education Code and Government Code sections.

6. Prior to hearing, SCCOE rescinded the layoff notices issued to the following eight employees, who are no longer respondents in this matter: Miguel Aldapa, Maria Castro, Kristen Everett, Wendy Franco, Maria Navarro, Michelle Oliver, Angela Pak, and Juana Rojas Zavala.

7. Thus, 63 employees remained as respondents at the time of hearing: the 56 employees represented by attorney Lindstrom who are listed in Attachment B to this decision, and the 7 self-represented respondents who are listed in Attachment C.

¹ At hearing, SCCOE provided a list of 70 respondents who had been served with RIF Packets; but the evidence established that one respondent, Angela Pak, was inadvertently left off the list of respondents despite having been served a RIF Packet.

8. SCCOE's counsel timely served a notice of hearing on respondent's counsel by email, who accepted service on behalf of the represented respondents, and timely served a notice of hearing on each unrepresented respondent by certified mail.

PKS Resolution and Identification of Employees for Layoff Notices

9. Kushwinder Gill, Ed.D., Assistant Superintendent of Personnel Services, testified about SCCOE's decision to initiate a layoff proceeding, the methodology used to identify certificated employees to receive layoff notices, and the steps taken to comply with the Education Code's requirements for the layoff process.

10. SCCOE administrators, directors, and division leaders conducted a series of cabinet meetings and conversations, and consulted with the Interim Superintendent over the last several months about the need to reduce the number of certificated employees for the 2025-2026 school year. Dr. Gill explained that the proposed reductions in the PKS Resolution occurred after a review of SCCOE's needs and its ability to comply with federal and state mandated programs. In making the reduction in force recommendations, SCCOE staff also accounted for positively assured attrition.

11. Dr. Gill identified two reasons for the proposed reductions: the expiration of grant funding, and a decline in student enrollment in special education programs.

(a) The Early Learning Services department includes Head Start and preschool programs that depend on grant funding. SCCOE is in the fifth year of a five-year federal Head Start grant, and has applied for renewal of the grant funding, but no approval has yet been received. State preschool grant funding has also not yet been approved. All certificated employees in the Early Learning Services department received layoff notices. Dr. Gill explained that if SCCOE learns that Head Start or preschool grant funding has been approved, as many of these positions as possible

will be reinstated. The reductions to the Migrant Education and Youth Health and Wellness departments are also due to grant funding not yet being approved.

(b) The reductions in the Special Education department are due to an expected decline in enrollment of special education students for the upcoming school year, as described by the Executive Director of the Special Education department (see Factual Findings 19-20).

12. In the opinion of Dr. Gill, the layoffs and reduction in particular kinds of services relate solely to the welfare of the schools and students served by SCCOE.

13. Interim Superintendent Hinman adopted the PKS Resolution on March 7, 2025, and directed staff to prepare the initial layoff notices to affected employees.

14. Dr. Gill and her staff prepared the seniority list of SCCOE certificated employees (Seniority List). For each certificated employee, the Seniority List states the hire date, employee's name, position, FTE, bargaining unit, calendar days worked per school year, work site, and the employee's credentials with expiration dates. Dr. Gill explained the steps taken to ensure accuracy of the Seniority List. The list is updated as new information is obtained about employee credentials, authorizations, and certifications. The Seniority List was shared with the union president and posted on the SCCOE intranet, and employees were emailed a link to review the Seniority List and verify the accuracy of their own seniority date and credentials. Responses were sent to Human Resources staff who updated the Seniority List. Staff also verified employee credentials on the website of the California Commission on Teacher Credentialing.

15. Dr. Gill described the method by which SCCOE identified certificated employees to receive layoff notices. The positions listed in the PKS Resolution were checked against the Seniority List to identify which employees currently are in the

affected positions, which employee was the least senior in each affected position, and whether the employee had credentials that would allow them to “bump” a less senior employee. If a less senior employee was bumped, the list was reviewed to determine whether the employee had credentials allowing them to bump yet another employee. This process was repeated until no more bumps were possible, and the least senior employee in the bumping chain was identified for layoff. The criteria set forth in the Tie-Breaker Resolution were applied to break any ties in seniority dates.

16. No employee has disputed their seniority date or application of the tie-breaking criteria.

17. Dr. Gill confirmed that no permanent or probationary certificated employee with less seniority than a respondent is being retained to provide a service for which a respondent is credentialed and competent to render.

18. Dr. Gill confirmed that she maintained records of the service of the initial layoff notices, the RIF Packets, and the notice of hearing. No disputes were raised at hearing regarding the service of any of these documents.

Mandated Services to Special Education Students

19. Jennifer Ann, Ed.D., Executive Director of the Special Education Department, testified at hearing about the reductions to positions in her department, and SCCOE’s ability to provide at least the minimum level of mandated special education services. Dr. Ann explained that for each student receiving special education services, the student’s IEP (Individualized Education Program) lists the specific types and amounts of services (typically stated in minutes or hours) that SCCOE must provide. Dr. Ann participated in the discussion of proposed PKS reductions in positions serving special education students, including Speech-Language Pathologists (SLP’s),

Mental Health School Wellness Specialists, and Adaptive Physical Education (APE) Specialist.

20. In Dr. Ann's opinion, SCCOE will be able to meet the minimum mandated level of special education services for special education students for the 2025-2026 school year, despite the layoffs. Dr. Ann testified that there are fewer special education students enrolled for the 2025-2026 school year than the 2024-2025 school year, because some students will be served directly by school districts rather than SCCOE.

21. Dr. Ann reviewed the service levels for each special education student projected to be served next year and compared that information to staffing levels for those services.

22. The PKS Resolution includes a 3.0 FTE reduction in the SLP position. For SLP services, Dr. Ann reviewed the number of speech-language minutes in the IEP's for next year's special education students, and compared it to the number of SLP staff and the hours that staff are able to provide services. Dr. Ann created a spreadsheet for her review of SLP services,² reflecting the number of weekly minutes of required services for next year by type (individual, group, consultative), and the number of classes in special education clusters. She converted the total number of required weekly speech-language minutes to hours, to compare that information to staff capacity.

² For other types of special education services, Dr. Ann performed a similar review of mandated student service levels and available staffing, but did not create a spreadsheet to document it in the same detail. "Rebenching" packets provided an FTE average per class, which is used to determine staffing for special education services.

Each SLP works a seven-hour workday. Dr. Ann used six hours per day (30 hours per week) of student time for each SLP in making her calculations, to account for lunch and other tasks. She also used a conservative number in calculating group minutes, assuming that groups would be limited to two students (although some services are offered in groups of three or four students). After comparing the required minutes of services to the SLP time available, Dr. Ann found that there would still be two hours of non-student time available for SLP's each week.

23. A committee is discussing implementation of a tool for quantifying SLP workload, as described in Factual Finding 37. Dr. Ann was formerly a member of that committee. The workload tool is being used by SLP's but it has not yet been officially adopted and implemented. Thus, Dr. Ann used the method described in Factual Finding 22 to determine SLP capacity.

24. James Howarth, Assistant Director of Human Resources, also provided testimony on behalf of SCCOE about the SLP workload tool. Howarth is part of the committee working on this tool. He confirmed that the tool is still being discussed and developed in the committee, even though it is currently being used by members of the SLP team. There has not yet been an agreement between the parties about use of the tool, and its formal implementation.

25. Dr. Ann was questioned about compensatory SLP services owed to students. In some circumstances, staff absences result in a student not receiving the required minutes of speech-language services, and SLP staff tracks the compensatory time that must be made up for each student. In the fall of 2024, Dr. Ann became aware that there was a backlog of compensatory time for SLP services rolled over from prior school years, which should not happen, and she has taken steps to address it. Most of the compensatory time has been made up.

Dr. Ann considered how mandated services would continue to be provided at reduced staffing levels next year if staff were absent. She believes SCCOE will have sufficient staff to cover SLP absences. There are no designated substitutes for SLP's. However, if an SLP took an extended leave of absence, SCCOE could bring in a retired SLP or a short-term contractor to provide coverage.

26. If SCCOE becomes unable to provide the mandated services to special education students, it would rehire staff into positions that had been laid off.

27. Dr. Ann was questioned about Behavioral Analyst services, and explained that staff in those positions at SCCOE provide very limited direct student services, primarily supporting the entire special education program. Next year there will be 16 fewer classes, which is equal to one Behavioral Analyst position. The PKS Resolution includes a 1.0 FTE reduction to the Behavioral Analyst position.

28. Dr. Ann was also questioned about adaptive physical education services. The PKS Resolution includes a 1.0 FTE reduction in the APE Specialist position. Adaptive PE teachers provide services to school districts, and some districts will not be in the SCCOE program for next year. Dr. Ann determined that there will be sufficient adaptive PE teachers next year to provide these services despite the layoff.

Respondents' Contentions

29. Respondents raised two global challenges to the layoff process, contending that the decision to reduce particular kinds of services is arbitrary or capricious, and that the proposed reductions will render SCCOE unable to provide the minimum required level of mandated services to special education students in the 2025-2026 school year. Respondents also challenged the "partial layoff notices" issued

to five Mental Health School Wellness Specialists. Lastly, respondents Boiko and Yu provided individual testimony about their proposed layoffs.

PKS REDUCTION ALLEGEDLY ARBITRARY OR CAPRICIOUS

30. Adia Hoag testified at hearing about her analysis of SCCOE finances. Hoag is a staff member at the California Teachers Association and is the primary staff contact for the ACE members. As part of her job duties, Hoag follows the county budget process closely and regularly reviews information received from SCCOE. Hoag analyzed SCCOE financial information from the 2023-2024 school year (unaudited actual figures), and 2024-2025 school year (adopted budget, first interim budget revision, second interim budget revision). She also looked at trends in SCCOE income and spending from the 2019-2020 school year through the 2024-2025 year.

Hoag made several points. SCCOE carried over almost \$15 million more in reserves than last year. Local Control Funding Formula (LCFF) income from the state increased, as did income from federal, other state, and other local sources. She stated that overall, SCCOE began the 2024-2025 school year with \$57 million more than last year. When looking at expenditures, Hoag noted that SCCOE increased spending in categories such as books and supplies, and services and consultants. Hoag also noted that the Santa Clara County Board of Education recently hired a new superintendent starting May 1, 2025, at a salary that would make him the highest paid county superintendent in the state.

In Hoag's opinion, SCCOE has sufficient funds to run its programs and an employee layoff is unnecessary.

31. Riju Krishna testified about several topics at hearing. Krishna is a teacher for SCCOE's Opportunity Youth Academy, and is the ACE union president. She is part

of the ACE bargaining team and regularly requests and receives information from SCCOE, including through Public Records Act requests.

32. Krishna questioned special education declining enrollment as a justification for the layoffs. She stated that on March 4, 2025, Interim Superintendent Hinman sent an email message explaining the reductions being made, and stating that there were currently 916 students enrolled, with a projected 796 enrolled for next year (a difference of 120 students). These figures did not match other information Krishna received. A PRA response on April 2 showed that districts were taking back 36 students from SCCOE. Information about special education block enrollment showed 1,050 students in February and 1,055 in March. Rebenching packets from February and March showed projections of 796 and 809 students for next year. Krishna stated the FTE reductions reflect an 11 to 13 percent reduction to employee positions, while the decrease of student enrollment stated by Interim Superintendent Hinman is only four percent.

Krishna has worked for SCCOE since 2002. In her experience, districts state they will take back students from SCCOE, but that it does not always happen as projected, or the students may later return to being served by SCCOE. The special education students served by SCCOE include those with the highest level of need.

33. Krishna also questioned lack of grant funding as a justification for layoffs.

For the Mental Health School Wellness Specialist positions being reduced by 12.47 FTE in the PKS Resolution, Krishna noted that 11 layoff notices were issued, two vacant positions were eliminated, and five employees had their calendar days reduced as described in Factual Finding 42. According to Krishna, after the layoff notices, there will be 15 management positions remaining to oversee five clinicians, where grant

funding is typically focused on the number of clinicians. She conceded that she does not know the overall job responsibilities of the 15 management positions.

Krishna questioned SCCOE's approach in issuing initial layoff notices to the entire Early Learning Services department because grant funding has not yet been approved, when she believes there is sufficient money in the general fund. She also noted that discovery responses received from SCCOE included documents labeled as "tentative assignments" for the upcoming school year showing most of the Early Learning Services positions reinstated. Parents have not yet been informed of cuts.

MANDATED SERVICES

34. Stephanie Pedone testified about SLP services and workload. Pedone is the current SLP team lead. She did not receive a layoff notice.

35. Pedone confirmed that students accrue compensatory time when a service provider is not available to provide their required minutes of service. SLP's had previously tracked this compensatory time in a multi-provider spreadsheet; this year the team changed to track compensatory time in separate spreadsheets for each SLP. At the beginning of the 2024-2025 school year, Pedone had 10,923 minutes of accrued compensatory time to provide, which she inherited with her current caseload. SCCOE offered speech camps during February break and spring break for students who were owed five or more hours of compensatory time, which decreased the backlog of compensatory time. Pedone still has 2,460 minutes left from the backlog, in addition to any compensatory time accrued during absences this school year.

36. Pedone has not been informed of a clear plan for covering SLP absences and compensatory time. Pedone stated that SCCOE does not provide short-term substitutes for SLP's who are absent, instead asking SLP's to make up their minutes.

Four years ago, Pedone was out for four months on medical leave, and returned to find her students had not been served. She described adverse impacts on students.

Pedone also discussed difficulties finding SLP's to cover summer services for students in extended school year programs. She noted that finding contractors can be difficult because many contractors provide services virtually, but many of the students served by SCCOE have moderate to severe needs that benefit more from in-person services. Pedone reported that there is a shortage of SLP's in California.

37. Pedone discussed the development of a tool to track SLP workload, called the SLP Weighted Workload Acuity Tool (SWWAT). The SWWAT is a comparative tool that measures SLP workload in units, and an SLP working a seven-hour day can perform 60 to 65 units. Pedone's workload this year is 65.7 units. She is familiar with her colleagues' workload, and several of them are over 65 units this year. If SLP's are over their workload numbers, they are directed to contact their manager and schedule a meeting to make adjustments.

The SWWAT was developed in the 2023-2024 school year. In March 2024, a memorandum of understanding was signed between SCCOE and ACE for a one-year pilot program from July 2024 through June 2025 to test and evaluate a new mechanism for assigning cases to SLP's. The parties agreed to develop and implement a workload acuity tool, with the SWWAT being deployed as a pilot project for the 2024-2025 school year, and a committee meeting monthly to review its effectiveness. If the parties do not reach tentative agreement on a successor agreement by June 30, 2025, the pilot program will continue through June 2026.

38. Pedone is concerned that if SLP positions are reduced for next year, more students will be unserved. In her opinion, the expected drop in student enrollment for

next year does not justify a 3.0 FTE reduction in SLP's. Pedone questioned whether Dr. Ann's analysis of SLP service levels and staffing sufficiently accounts for time spent on the assessments needed for IEP's.

39. Krishna also questioned Dr. Ann's analysis of minimum staffing levels needed to meet mandated services for special education students. In her opinion, Dr. Ann's analysis of SLP service minutes failed to take into account sufficient time for travel, assessments, programming student devices, billing Medi-Cal, and prep time. She also questioned why a similar spreadsheet was not created for positions other than SLP's. In Krishna's opinion, the proposed reductions are arbitrary, and will result in SCCOE's inability to provide mandated services to special education students.

MENTAL HEALTH SCHOOL WELLNESS SPECIALIST "PARTIAL LAYOFFS"

40. Dr. Gill discussed the "calendar days" shown for certificated employees on the Seniority List. Each employee is required to work a certain number of calendar days in a school year, which varies depending on the employee's particular program. An employee working 185 calendar days and an employee working 220 calendar days may both be considered full-time employees depending on the number of calendar days required for their respective positions.

41. The PKS Resolution identified a 12.47 FTE reduction in the position of Mental Health School Wellness Specialist. Some employees in this position received layoff notices stating they would not be employed at all for the 2025-2026 school year; those layoff notices are not in dispute (apart from respondents' global challenges).

42. Five respondents in Mental Health School Wellness Specialist positions each received what SCCOE categorized as a "partial layoff notice": Avelina Charles, Alejandra Fernandez-Zamora, Kathryn Hendricks, Estefania Ramirez-Romo, and Jeremy

Strametz. These five respondents received notices that they would be working in the same job positions next year, in full-time 1.0 FTE status, but for a reduced number of calendar days in the 2025-2026 school year (187 calendar days) than in the 2024-2025 school year (210 calendar days for Strametz and 205 calendar days for Charles, Fernandez-Zamora, Hendricks, and Ramirez-Romo).

43. Hendricks testified at hearing. She is the second most senior employee in the Mental Health School Wellness Specialist position. Hendricks and her colleagues were called into a meeting on March 6, 2025, told that there would be a change in their calendar days worked for the 2025-2026 school year, and given “partial layoff” notices. Hendricks was not told that her FTE was slated to be reduced through this layoff proceeding, or that she would become a part-time employee. Hendricks was informed that her calendar days worked would be reduced from 205 to 187, but that no other changes would occur to her job duties, title, or job description.

44. Hendricks was hired as a Behavioral Analyst in September 2021, and was contracted to work 185 calendar days at that time, as classified staff in the SEIU union. In December 2022, the Behavioral Analyst positions were changed to certificated positions in the ACE union, through a memorandum of understanding requiring that they work 205 calendar days.³ When Hendricks worked on a 185 calendar day schedule, she was considered a 1.0 FTE employee. When she worked on a 205 calendar day schedule, she was also considered a 1.0 FTE employee. Hendricks was told during

³ Strametz previously worked 224 calendar days and was reduced to 210 calendar days at that time. He works more days than the other employees in this position because his school site is year-round.

the 2022 bargaining process that the change to the number of calendar days was related to a grant requirement, but she saw no such requirement in the grants.

INDIVIDUAL EMPLOYEES

Eleesa Boiko

45. The PKS Resolution identified a 1.0 FTE Behavioral Analyst position in the Special Education department for layoff. The job description for the Behavioral Analyst position requires certification as a BCBA (Board Certified Behavior Analyst) or proof of enrollment.

Eleesa Boiko holds this position and testified at hearing to her contention that she should not be laid off. Boiko is the least senior employee in a team of eight Behavioral Analysts and has BCBA certification. Boiko and another colleague, who is more senior but does not have BCBA certification, both received initial layoff notices. The notice to Boiko's colleague was subsequently rescinded, while Boiko's was not.

Boiko discussed the importance of the services she provides to vulnerable students. She also questioned the fairness and transparency of the process by which employees were identified for layoffs.

Conchita Yu

46. Conchita Yu testified at hearing. Yu is a Head Start teacher in the Early Learning Services department and received an initial layoff notice. Yu discussed the importance of the essential services she provides to vulnerable students, the impact of layoffs on students and families, and the emotional and financial impact of layoffs on SCCOE employees. Yu did not raise any specific challenge to the layoff procedures as applied to her position.

LEGAL CONCLUSIONS

1. SCCOE complied with all notice and jurisdictional requirements set forth in Education Code sections 44949 and 44955.

2. The services identified in the PKS Resolution are particular kinds of services that may be reduced or discontinued under Education Code section 44955 in the discretion of SCCOE.

3. A district may consider its financial circumstances in deciding whether to reduce or discontinue a particular kind of service. However, the district's decision to reduce a particular kind of service must not be fraudulent, arbitrary, or capricious. (*San Jose Teachers Assn. v. Allen* (1983) 144 Cal.App.3d 627, 637.) The courts have held this legal standard permits "a difference of opinion on the same subject." (*Campbell Elementary Teachers Assn., Inc. v. Abbott* (1978) 76 Cal.App.3d 796, 808.)

Respondents raised questions about SCCOE's financial need for PKS reductions and the method by which the services were identified for reductions. (Factual Findings 30-33, 39.) However, the evidence did not establish that SCCOE's decision to reduce the services stated in the PKS Resolution, as described in Factual Findings 1, 9-12, 19-22, and 27-28, was fraudulent, arbitrary, or capricious, or an abuse of discretion.

4. A district may properly reduce services in a statutorily mandated program as long as the mandated services do not fall below the statutory minimum. (*Campbell Elementary Teachers Assn., supra*, 76 Cal.App.3d at p. 811.)

Respondents raised questions about SCCOE's ability to provide mandated services to special education students if the proposed reductions are implemented.

(Factual Findings 34-39.) However, the evidence did not establish that SCCOE will be unable to provide the minimum level of mandated services. (Factual Findings 19-28.)

5. Cause exists to reduce the number of certificated employees of SCCOE due to the reduction or discontinuance of particular kinds of services.

6. The matters set forth in Factual Findings 40 through 44 establish that the “partial layoff notices” issued to five respondents (Avelina Charles, Alejandra Fernandez-Zamora, Kathryn Hendricks, Estefania Ramirez-Romo, and Jeremy Strametz) are not properly considered layoff notices within the meaning of Education Code sections 44949 and 44955. Changing the work schedules of these five respondents from a 205 or 210 calendar day school year to a 187 calendar day school year, while keeping them in the same 1.0 FTE position with the same job description, is not a reduction that requires a layoff notice. SCCOE may make such a work schedule change without issuing a layoff notice, and “partial layoff notices” issued to these five respondent must be rescinded.

7. Education Code sections 44949 and 44955 establish a seniority-based layoff procedure that mandates that employees shall be terminated in the inverse order in which they were employed. These statutes do not permit employees to establish that they should be skipped because their certifications and experience render them more valuable to SCCOE than other employees. (See *Martin v Kentfield* (1983) 35 Cal. 3d 294, 299.) It is SCCOE’s right and burden, not the employees’, to demonstrate a specific need for personnel or services such that those qualifications may be skipped in the layoff process. (Ed. Code, § 44955, subd. (d); *Bledsoe v. Biggs Unified School District* (2008) 170 Cal.App.4th 127, 136-137.)

Respondent Boiko does not raise a valid challenge to her layoff. The PKS Resolution reduced the service that Boiko provides, Behavioral Analyst, and did not provide for skipping of any employee based on certification status. (Factual Findings 1 and 45.) There is no permanent or probationary employee junior to Boiko who is being retained to render a service that she is credentialed and competent to teach. (Ed. Code, § 44955, subd. (b).) Boiko may properly be given a final layoff notice.

8. The evidence did not establish any valid challenge to the layoff notice received by respondent Yu. (Factual Finding 46.) Yu may properly be given a final layoff notice.

9. The evidence established that no certificated employee with less seniority than respondents is being retained to render services which respondents are certificated and competent to perform.

10. Because of the reduction or elimination of particular kinds of services set forth in Factual Finding 1 and Attachment A to this decision, cause exists pursuant to Education Code sections 44949 and 44955 to give notice to the respondents (except the respondents listed in Legal Conclusion 6) up to the number of the FTE reductions set forth in the PKS Resolution, that their services will not be required or will be reduced for the 2025-2026 school year. This cause solely relates to the welfare of the schools and the pupils thereof within the meaning of Education Code section 44949.

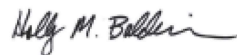
11. All other arguments and contentions of the parties not specifically addressed herein were considered and are rejected.

ORDER

1. The Statement of Reduction in Force against respondents Avelina Charles, Alejandra Fernandez-Zamora, Kathryn Hendricks, Estefania Ramirez-Romo, and Jeremy Strametz is dismissed and the preliminary layoff notices issued to these respondents are rescinded. Final notices of layoff may not be provided to these five certificated employees.

2. The Statement of Reduction in Force is sustained as to all respondents other than Avelina Charles, Alejandra Fernandez-Zamora, Kathryn Hendricks, Estefania Ramirez-Romo, and Jeremy Strametz. Aside from these respondents, final notice may be given to the certificated employees listed in Attachment B and Attachment C that their services will not be required or will be reduced for the 2025-2026 school year because of the reduction or elimination of particular kinds of services. In issuing its final notices of layoff, SCCOE shall follow the seniority requirements of Education Code section 44955, subdivision (b), to effectuate all reductions in services.

DATE: 05/01/2025



HOLLY M. BALDWIN

Administrative Law Judge

Office of Administrative Hearings

Attachment A: Reduction or Elimination of Particular Kinds of Services

Position	Department	FTE
Teacher – Specialized Academic Instruction	Special Education	11.0
Teacher – Early Childhood Special Education	Special Education	2.0
Mental Health & Wellness Specialists	Youth Health & Wellness	12.47
Behavior Analyst	Special Education	1.0
Teacher- Therapeutic	Special Education	2.0
Teacher- Deaf and Hard of Hearing	Special Education	1.0
Teacher – Migrant Education	Migrant Education	1.0
School Nurse	Special Education	2.0
Speech and Language Pathologist	Special Education	3.0
Adaptive Physical Education Specialist	Special Education	1.0
Teacher- Visual Impairment	Special Education	2.0
Teacher on Special Assignment - Curriculum & Instruction	Special Education	1.0
Preschool Teacher/Coach – Migrant Education	Migrant Education	1.0
Teacher – Head Start	Early Learning Services	23.0

Preschool Teacher/Coach – Head Start	Early Learning Services	3.0
Teacher – Head Start P/D	Early Learning Services	3.0
Teacher – State Preschool	Early Learning Services	9.0
Teacher – Educare State Preschool – Head Start	Early Learning Services	1.0
Teacher – Educare – Head Start	Early Learning Services	5.0
Teacher – Infant/Toddler - Educare	Early Learning Services	2.0
Preschool Teacher/Coach – Educare	Early Learning Services	2.0
Psychologist	Special Education	2.2
School Therapist- Deaf and Hard of Hearing	Special Education	0.5
School Therapist	Special Education	2.0
Teacher – Early Learning Center	Early Learning Services	2.0
Teacher – Early Learning Center – Infant/Toddler	Early Learning Services	1.0

Total = 96.17 FTE

Attachment B: List of 56 ACE Respondents

Wenda Abbas	Marina Garcia
Mayra Alvarez	Yolanda Garcia
Kruthika Anand	Haru Gojo
Monica Berry	Angelica Guzman
Eleesa Boiko	Kathryn Hendricks
Terrie Cascio	Anna Heredia
Ana Castillo	Ana Herrera
Avelina Charles	Any Jenkins
Daisy Blesilda Collado	Rocio Jimenez de Reyes
Angeles Cordova Escamilla	Yih sien Lee
Mireya Coronado	Aliaa Malik
Le Ha Dang	Yareny Mandujano
Thu-Huong Dang	Marcela Martinez
Alejandra Fernandez-Zamora	Ana Martinez Davis
Ricardo Flores Hernandez	Sara Moran
Angelica Galvan	Rowena Nacion
Eric Garcia	Felicidad Ng

Preeti Nighojkar

Tahani Smith

Adriana Oviedo

Jeremy Strametz

Hir Patel

Vicki Tafoya

Jill Phiri

Bao Chau Tran

Joyce Ponce

Christopher Tsang

Maria Portillo

Ana Ureno

Viridiana Ramirez

Juana Valdivia

Estefania Ramirez-Romo

Irene Vargas

Alicia Rios-Marquez

Silvia Vidal Hernandez (Espinoza)

Amalia Saldana

Frances Vuong

Awanti Singh

Palak Vyas

Attachment C: List of 7 Self-Represented Respondents

Tracy Cadena

Jordan Goldstein

Althea Guzman

Courtney Henry

An Ho

Ngoc Pham

Conchita Yu